

Master Software as a Service Agreement

Contract No. CS-2024-0891 | Effective Date: January 15, 2025 | Version 2.3

Vendor: CloudSync Technologies Pvt. Ltd., 47 Bandra Kurla Complex, Mumbai 400051

Client: Meridian Retail Solutions Ltd., 12 Nariman Point, Mumbai 400021

Contract Value: INR 48,00,000 per annum (exclusive of GST)

Term: 24 months from Effective Date

1. Definitions

"Service" means the CloudSync data synchronisation and analytics platform, including all modules, updates, and associated APIs made available under this Agreement.

"Confidential Information" means any data, trade secrets, business strategies, customer data, or technical information disclosed by either party.

"Uptime" means the percentage of time the Service is available and accessible, calculated on a monthly basis excluding Scheduled Maintenance.

2. Licence Grant

2.1 CloudSync grants Meridian a non-exclusive, non-transferable, revocable licence to access and use the Service solely for internal business operations during the Term.

2.2 Meridian shall not sublicense, resell, or make the Service available to any third party without the prior written consent of CloudSync.

2.3 All intellectual property rights in the Service, including any custom modules developed specifically for Meridian, shall remain the exclusive property of CloudSync. Meridian acknowledges that any customisations funded by Meridian shall vest in CloudSync upon delivery.

Clause 2.3 — IP ownership risk: customisations paid for by the client vest in the vendor, not the client. Meridian has no ownership rights over funded development.

3. Payment Terms

3.1 Meridian shall pay the annual subscription fee of INR 48,00,000 in advance within 15 days of the Effective Date and each anniversary thereof.

3.2 CloudSync reserves the right to revise pricing at the commencement of each renewal term with 60 days written notice. Continued use of the Service after the notice period shall constitute acceptance of revised pricing.

3.3 All overdue amounts shall attract interest at 24% per annum (2% per month) compounded monthly.

Clause 3.3 — Payment penalty risk: interest rate of 24% p.a. compounded monthly is unusually high. Standard market rate is 12–15% p.a. simple interest.

4. Service Levels

4.1 CloudSync commits to a monthly Uptime of 99.5% for the core synchronisation service.

4.2 In the event of Uptime falling below 99.5% in any calendar month, Meridian shall be entitled to a service credit of 5% of the monthly fee for each full percentage point of downtime below the threshold.

4.3 Service credits are the sole and exclusive remedy for Uptime failures. No cash refunds shall be provided under any circumstances.

4.4 Scheduled maintenance windows of up to 8 hours per month shall not count against Uptime calculations.

5. Data Ownership and Privacy

5.1 Meridian retains ownership of all business data uploaded to the Service ('Client Data').

5.2 CloudSync may use aggregated, anonymised Client Data for product improvement, benchmarking, and research purposes without restriction.

Clause 5.2 — Data usage risk: vendor has broad rights to use anonymised client data for commercial purposes including benchmarking, which may reveal competitive information.

5.3 Upon termination, CloudSync shall provide a data export within 30 days in CSV format. After 30 days, all Client Data shall be permanently deleted.

6. Term and Renewal

6.1 This Agreement commences on the Effective Date and continues for 24 months.

6.2 Unless either party provides written notice of non-renewal at least 90 days prior to expiry, this Agreement shall automatically renew for successive 12-month periods on the same terms and conditions.

Clause 6.2 — Auto-renewal trap: 90-day notice window is unusually long. Missing this window locks Meridian into another 12 months at potentially revised pricing (see Clause 3.2).

6.3 Early termination by Meridian prior to the end of any term shall incur a termination fee equal to 50% of the remaining contract value.

7. Limitation of Liability

7.1 Neither party shall be liable for indirect, consequential, special, or punitive damages arising from this Agreement.

7.2 CloudSync's total aggregate liability under this Agreement shall not exceed the fees paid by Meridian in the 3 months immediately preceding the event giving rise to the claim.

Clause 7.2 — Liability cap risk: liability capped at only 3 months of fees (INR 12,00,000), which may be grossly inadequate for a data loss or service outage causing significant business disruption.

8. Governing Law

8.1 This Agreement is governed by the laws of Maharashtra, India.

8.2 All disputes shall be subject to the exclusive jurisdiction of the courts of Mumbai.

8.3 Either party may seek injunctive relief in any court of competent jurisdiction.